

GENERAL TERMS AND CONDITIONS OF SALE OF WWW.READMYLIPS.BE

These general terms and conditions of sale shall apply to all services offered by Read My Lips - The Speakers Office to a Client.

Article 1 – Definitions

- 1.1 The “*Contract*” between Read My Lips and the Client includes the general terms and conditions of sale as well as the order form accepted by the Client.
- 1.2 “*The Speakers Office*” plc, hereinafter “*Read My Lips*”, has its headquarters at Brasschaatsteenweg 308, 2920 Kalmthout, Belgium. Contact: +32 2 512 91 93 or contact@readmylips.be
- 1.3 The “*Client*” refers to any person that orders a service from Read My Lips.
- 1.4 The “*Service*” refers to any service provided directly or indirectly by Read My Lips, in particular the provision of speakers, moderators and presenters.
- 1.5 The “*Speaker*” refers to any person who has agreed with Read My Lips to provide a certain service.

Article 2 – Conclusion of the Contract

- 2.1 Following a request for information, Read My Lips shall send a draft order form for the proposed service. This draft order form, issued solely for guidance purposes, shall be valid for 10 days, unless indicated otherwise therein.
- 2.2 To place an order, the Client shall return the order form, by way of agreement, to Read My Lips, by email, fax or by post. The contract is then concluded.
- 2.3 The Client and Read My Lips expressly agree that the Contract may be concluded electronically, even in the absence of a signature. The order form shall be stored electronically by Read My Lips, using a reliable, long-term data storage medium, and shall be considered as proof of the contractual relationship between the parties.

Article 3 – Rates

- 3.1 The rates charged are those indicated in the order form. Our rates are quoted in euros exclusive of VAT.
- 3.2 If the Client cancels a Speaker service more than 15 calendar days before the agreed date for the provision of the service, a lump-sum amount of 30% of the agreed rate with a minimum of 125 euros shall be invoiced to the Client by way of compensation.
- 3.3 If the Client cancels a Speaker service less than 15 calendar days before the agreed date for the provision of the service, the full amount of the agreed rate shall be due.

Article 4 – Invoicing and payment

- 4.1 Invoices are sent by email or post to the Client’s contact person.
- 4.2 Unless stipulated otherwise, invoices are payable within 30 days of their date of issue and at the latest 15 days before the Speaker service date. If payment is not made at the latest 15 days before the Speaker service date, Read My Lips may cancel the Speaker service. In such a case, the full amount of the agreed rate shall remain due and payable. The Client may not make payment directly to the Speaker.

- 4.3 In the event of non-payment on the due date, interest at the rate of one and a half times the legal rate shall be charged, ipso jure and without the need for formal notice, with effect from that date. In the event of non-payment within 10 days of issuing a reminder, lump-sum compensation of 125 euros shall be invoiced to the Client as well as any recovery costs.
- 4.4 In the event of non-payment within 10 days of issuing a reminder, Read My Lips may suspend all its obligations pursuant to the Contract or any other contract concluded with the Client and cancel the contract(s), in which case the Client shall be liable for at least the amounts of compensation specified in article 3.

Article 5 – The Client’s specific obligations

- 5.1 The Client shall make available to the Speaker the necessary equipment for the proper performance of the service. In addition, the Client shall make available all the equipment specifically indicated in the order form. The Client shall be responsible for this equipment.
- 5.2 The Client is deemed to be familiar with the qualities, expertise and personality of the Speaker.
- 5.3 The Client is responsible for compliance with all applicable safety standards and laws in general and any consequences resulting from non-compliance with them.
- 5.4 The Client agrees not to contact the Speaker directly for a Service during and after the termination of this Contract, nor to accept a direct offer from the Speaker for a Service when the Speaker and the Client have come into contact for the first time or since long via Read My Lips. The Client commits to address any request for a Service, involving such Speaker, directly to Read My Lips who will process such request. In the event of non-compliance with this provision by the Client, Read My Lips shall be entitled to claim full compensation from the Client for the losses Read My Lips has incurred. This obligation towards the Client shall lapse when the Speaker concerned is no longer affiliated with Read My Lips. Only written confirmation from Read My Lips to the Client shall be sufficient for this provision to become null and void.

Article 6 – Unavailability of the Speaker

- 6.1 If the Speaker is unable to perform the agreed service as a result of illness, an important family or professional event, the Client may choose:
- a. either to postpone the service to a later date to be agreed with Read My Lips; or
 - b. to request a replacement speaker to be proposed by Read My Lips insofar as possible and provided that the Client accepts, if applicable, a different rate for the service; or
 - c. to cancel the Contract, in which case any amounts already paid shall be reimbursed.
- 6.2 If the Client fails, within a reasonable period of time, to agree on an alternative solution if the Speaker is unavailable, Read My Lips may unilaterally cancel the Contract and reimburse any amounts paid.
- 6.3 Read My Lips shall have no liability to the Client for any damage that the Client may suffer as a result of the Speaker’s unavailability.

Article 7 – Intellectual property

- 7.1 The Client and third parties authorised by the Client to participate in the Speaker service may not, without the prior, written consent of Read My Lips:
- a. produce photographs, or film, video or sound recordings of the Speaker’s presentation;
 - b. reproduce or disseminate, via any process whatsoever, the name or image of the Speaker in advertising messages via any media whatsoever, except for material intended to promote the event or invitations prior to the presentation;
 - c. use all or part of the Speaker’s written or oral presentation.

- 7.2 In the event of non-compliance with one or more of the provisions in the previous indent, the Client shall be liable, after formal notice, for a fixed amount of € 2,500 (two thousand, five hundred euros) and an additional amount of € 2,500 (two thousand, five hundred euros) per day during which the infringement persists, notwithstanding the right of Read My Lips and the Speaker to require specific performance and full compensation for any loss suffered.
- 7.3 Where applicable, the Client must hold or obtain, at its expense, the licences and authorisations required by the relevant copyright and related rights. The Client shall hold Read My Lips harmless against all the consequences of any failure to comply with this obligation.

Article 8 – Liabilities and limitation of liability

- 8.1 The liability of Read My Lips to the Client shall be limited to direct damage resulting from its serious misconduct or persistent negligence. The amount of damages shall in any event be capped at three times the amount of the Contract. Read My Lips shall in no circumstances be liable for any consequential or incidental damage, such as loss of earnings, business, clients or contracts.
- 8.2 Read My Lips shall in no event be liable to third parties for any damage of whatever nature, irrespective of the cause. The Client shall hold Read My Lips harmless against any such claims by third parties.
- 8.3 Read My Lips shall have no editorial liability for the content of the Speaker service. Speakers shall have sole liability for such content. Read My Lips exercises no prior control over the content of the Speaker's presentation, even when the text is communicated to it beforehand.
- 8.4 The Client must inform Read My Lips in writing of any default in the performance of the Contract within 48 hours after it has become aware of any such default. The date and time of the notice may be established by any appropriate means. The Contract shall be deemed to have been properly performed by Read My Lips if the Client has not given such notice within the aforementioned period of 48 hours. The Client may neither suspend its contractual obligations nor offset the payment of any amounts in the event of a claim.

Article 9 – Cancellation of the Contract

- 9.1 The Client may cancel all or part of the Contract at any time, in which case it shall be required to pay the cancellation fee specified in article 3. Notice of cancellation must be given in writing.
- 9.2 Read My Lips may cancel the Contract by registered letter, with immediate effect and without prior formal notice, if the Client:
- makes improper use of the services proposed by Read My Lips or by the Speaker;
 - acts in a manner that is contrary to the reputation or interests of Read My Lips or of a Speaker;
 - does not remedy, within the time allotted, any failure by it to meet its contractual obligations, as detailed in a formal notice addressed to it;
 - disseminates information or acts in a manner that is contrary to accepted principles of morality or in breach of applicable laws;
 - is put into receivership or declared bankrupt.
- In such cases, the Client must reimburse all the costs already incurred for the performance of the Contract to Read My Lips, which shall have no liability for any damage resulting from the non-performance or cancellation of the Contract.

Article 10 – Force majeure

- 10.1 The situations generally recognised by Belgian case law and courts as acts of force majeure shall apply for the purpose of this Contract. Illness is not considered as an act of force majeure, but is covered by articles 6 on the Speaker's unavailability.

- 10.2 Read My Lips shall inform the Client as soon as possible of the nature of the act of force majeure and its probable duration and probable consequences. Read My Lips shall have no liability for any delay in the performance or for the non-performance of the Service as a result of an act of force majeure.
- 10.3 In the event of force majeure, Read My Lips is authorised to perform the Contract during the 60 days following the contractually agreed date for the performance of the Service.
- 10.4 After this 60-day period, the Client and Read My Lips shall be entitled to cancel the Contract in writing, with immediate effect and without prior formal notice.

Article 11 – Miscellaneous

- 11.1 Unless expressly stipulated otherwise in writing, only these general terms and conditions of sale shall apply and the provisions hereof shall also remain in force after the expiry of the Contract.
- 11.2 Any amendments to the Contract must be made in writing.
- 11.3 If any clause is deemed to be void, partially void or voidable, this invalidity shall not affect the remaining provisions of the Contract which shall remain in full force. Such a clause shall be replaced by a valid clause reflecting as closely as possible the intentions of the parties.
- 11.4 The failure by one of the parties to require at a given time strict compliance with one of the provisions of the Contract may in no event be construed as a waiver by the said party of its rights.

Article 12 – Governing law and competent jurisdiction

- 12.1 These general terms and conditions of sale shall be governed by Belgian law. In the event of a dispute between the parties, the courts of the judicial district of Brussels shall have exclusive jurisdiction.